

24VECV05945 24VECV05945

County: los-angeles

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Case Number: 24VECV05945 Hearing Date: June 30, 2026 Dept: NWI

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MARTIN COOPWOOD, et al. vs FCA US LLC

June 30,
2026, at 8:30 a.m.

Van Nuys Courthouse East, Dept. I

Tentative Ruling - Motion to Enforce
Settlement

I.
Motion to Enforce Settlement

On November 27, 2024, Plaintiffs Martin Coopwood ("Coopwood") and Jocelyn Calderon ("Calderon")(collectively "Plaintiffs") filed a complaint against Defendants FCA US LLC ("Defendant") and Does 1 to 10 alleging three causes of action: (1) breach of express warranty obligations under the Song-Beverly Warranty Act; (2) breach of implied warranty of merchantability under the Song-Beverly Warranty Act; and (3) violation of the Song-Beverly Act Section 1793.2.

On January 2, 2026, Plaintiffs filed a notice of settlement.

On June 4, 2026, Plaintiff filed the instant motion to enforce settlement.

To date, the motion remains unopposed.

II. Requested Relief

Cal. Code of Civ. Proc. § 664.6 provides, in pertinent part, as follows: “If parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement.”

In hearing a section 664.6 motion, the trial court may receive evidence, determine disputed facts, and enter terms of a settlement agreement as a judgment. (*Bowers v. Raymond J. Lucia Companies, Inc.* (2012) 206 Cal.App.4th 724, 732.) The Court may also receive oral testimony in addition to declarations. (*Kohn v. Jaymar-Ruby, Inc.* (1994) 23 Cal.App.4th 1530, 1533.)

The Court may interpret the terms and conditions of the settlement (*Fiore v. Alvord* (1985) 182 Cal.App.3d 561, 566), but the Court may not create material terms of a settlement, as opposed to deciding what terms the parties themselves have previously agreed upon. (*Weddington Productions, Inc. v. Flick* (1998) 60 Cal.App.4th 793, 810.)

Strict compliance with the statutory requirements is necessary before a court can enforce a settlement under this statute. (*Sully-Miller Contracting Co. v. Gledson/Cashman Construction, Inc.* (2002) 103 Cal.App.4th 30, 37.) The party seeking to enforce a settlement “must first establish the agreement at issue was set forth ‘in a writing signed by the parties’ (section 664.6) or was made orally before the court.” (*Harris v. Rudin, Richman & Appel* (1999) 74 Cal.App.4th 299, 304.)

The settlement must include the signatures of the parties seeking to enforce the agreement, and against whom enforcement is sought. (*J.B.B. Investment Partners, Ltd. v. Fair* (2014) 232 Cal.App.4th 974, 985.) “[A] writing is signed by a party if it is signed by . . . [a]n attorney who represents the party.” (CCP § 664.6(b)(2).)

III. Analysis

Plaintiffs allege that, on January 5, 2025, the parties

executed a Settlement Agreement and Release for execution (hereinafter the "Settlement Agreement"). (Mijares Decl. at ¶ 4; Exh. 1 [signed Settlement Agreement].) Pursuant to the Settlement Agreement, Defendant stated that it would issue a settlement check in the amount of \$85,000.00 within 90 days of execution. (Id. at ¶ 7; see Exh. 1.) A year later, on January 5, 2026, Plaintiffs' counsel contacted defense counsel to inquire on the status of the settlement check. (Id. at ¶ 6; Exh. 2 [email correspondence].) Defense counsel did not respond, despite multiple follow-up correspondences on January 27, February 13, and March 10, 2026. (Ibid.)

Defendant does not oppose the motion. Plaintiffs provide a copy of the parties' written and signed settlement agreement pursuant to CCP § 664.6. Accordingly, Plaintiffs' motion is granted.

IV. Conclusion

Based on the foregoing, Plaintiffs' motion to enforce settlement is GRANTED.

Moving party to give notice.